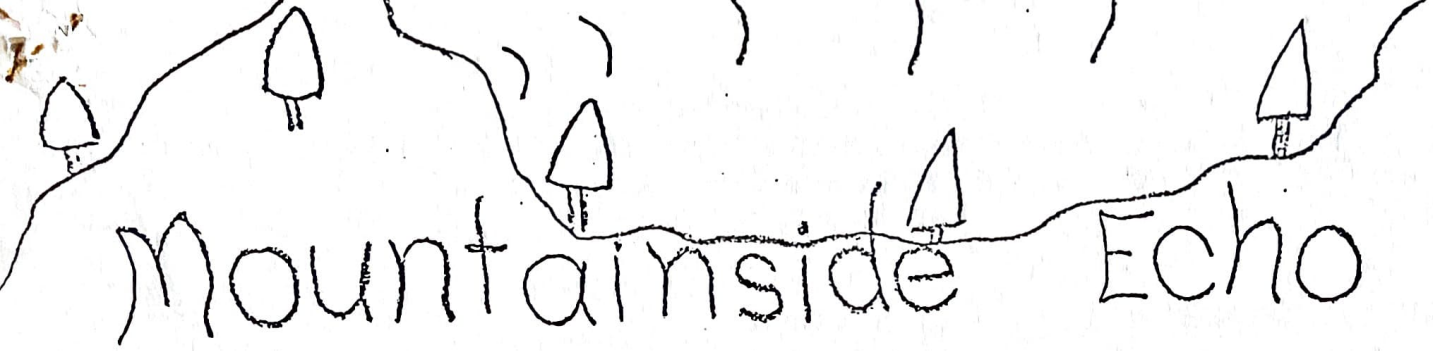


A NEWSLETTER PUBLISHED OCCASIONALLY - July 1981

PRESIDENT'S MESSAGE by Stan Bigelow

No doubt, many of you have been wondering what your Board has been doing these last eight months. The resurrection of the old CMA newsletter THE MOUNTAINSIDE ECHOES is our attempt to keep you informed.

"Growing pains" best describes the over-all development, especially as it relates to the interrelationship between CDC and CMA.

I believe the issues we are struggling with are real and are, in effect, a microcosm of the problems within our country:

+ Maintaining a place where retired persons can afford to live peacefully,
+ Providing permanent residence owners with incentives for environmental amenities which will be reasonable as they actively pursue their respective vocations.
+ Inter-facing the 2nd homeowners with the specific needs and goals of those who live at Coolfont permanently,
+ And finally, inter-facing the needs and goals of CMA with the commercial activities of CDC.

The last issue will be briefly considered in this article.

Organizationally, CMA evolved from CDC and has been largely dependent upon CDC for its continuing existence, in a parent/child relationship; recently CMA has sought to be more independent, taking charge of its own unique interests over and against the commercial goals which understandably motivate CDC. Defining the differences and the similarities so that each can pursue what is important to its survival and health has occupied central stage for the last few years.

I see the next stage of growth involving a strong CMA seeking mutually beneficial linkages with CDC in a separate but equal relationship. The strength of each organization is imperative to secure the mutual respect necessary in successful negotiation of respective interests.

To this end, your Board and other volunteer Mountainside owners are actively participating in various endeavors. I believe more people are beginning to take their responsibility seriously to make CMA what it has the potential to become. I feel that too many have held the philosophy, "I want peace and quiet at Coolfont and I want CDC to achieve it for me." One reason I became part of this association was that the covenants indicated we had control of our own destiny - I don't think we should give that right up by default. In our efforts to become responsible and wise-voting members, the Board has scheduled an information-only meeting for September 5, to be held in our renovated Barn. (See page 4 for schedule) We will discuss the problems facing CMA and the decisions that might be required at the November General Meeting.

Finally, whatever the future holds for our Association, it seems to me that the

Continue on Page 2

bottom line is for Nature and Man TO MEET ONE ANOTHER AS FRIENDS in a symbiotic relationship here at CMA; if each of us contributes what he can, it will remain that way.

TASK FORCE EXPANSION OF CMA by Charles Barrett Dick Minnamon

The Water Task Force, consisting of Dick Minnamon (F-2) and Charles Barrett (K-4), has been active since last December in acquiring records and analyzing the existing system. Based on their interim recommendations, CDC is now developing wells for the CMA system as reliable sources which will supplement and/or replace the existing springs.

As part of their Charter, the task force has been working with CDC to develop water system standards for any future CMA expansion. Considering the broad scope of issues involved in any expansion (and the task force membership in the Development and Architectural Control Committee), the Board extended the task force charter to enable them to investigate all issues relating to CMA expansion and especially those impacting the existing membership.

Dick Lehman (K-17and K-14) and President Stan Bigelow (O-4) were invited by the task force to attend the recent July 5th meeting. Martha Ashelman, Stephen Crane and Andy Michaels attended the meeting, representing CDC.

The agenda was directed at eliciting and clarifying the positions of CMA and CDC, as related to expansion, in terms of the rights and obligations of BOTH; and the present K-section expansion proposals of CDC.

It is clear from the meeting that a basic difference in points of view exist between CDC and CMA. CDC affirms that CDC may continue expansion of CMA as a right subject only to the limited restrictions contained in the 1974 motion of the CMA general meeting which was affirmed in 1980. The task force, with which Dick Lehman and your President concur, insist that under the terms of the Declaration and Covenants, the CMA has broad powers of control and may approve or disapprove additional expansion.

In this regard, the task force is requiring development of a master plan and development standards with a view toward establishing the detailed character of any expansion so that its positive and/or negative impacts can be understood and considered.

The task force has stressed its concern that added development of lots, with or without such compensating features as significant common land or a new lake, may well be perceived by the existing membership as a dilution of their equity, and rightly so.

NONSENSE OR SENSE???

No! Its not graffiti by pranksters...its the trigger hand of your Road Task Force spray painting those sections which were damaged last winter during the installation of the two new pre-fabricated solar envelope homes. It is our expectation that the contractor will repair some of the marked sections at no expense to the Association. As chair for the DACC, Roberta Gray is developing guidelines for winter construction.

THE BARN

Condemned by the fire marshall two years ago, the Barn has been rescued by The Common Lands Committee. A three-year lease arrangement was signed May 20, 1981 by the Board with Coolfont Recreation. CRI pays CMA $1200 a year for use of the Barn, pays the fire insurance premium, extended their liability insurance to cover, and takes care of ongoing maintenance. CMA made repairs on the Barn to meet fire standards, CRI renovated the bathrooms, recovered the floor in the arts and crafts area, fixed the roof and cleaned out and organized the lower level. We may use the Barn for CMA activities provided we

(Continued on Page 3)

give 30 days notice and we are not in conflict with CRI's use. CMA members may attend CRI-sponsored activities at half price provided tickets are purchased in advance at the Coolfont desk. If and when the Barn is subleased to any organization, CMA will receive 20% of the fee charged. With the Barn in use again, there are welcome sights and sounds.

JERRY SOPHAR'S "INSTRUMENT" - BIO-FEED BACK FOR CMA

Watch for it! A questionnaire designed to check out your feelings, attitudes and expectations towards your mountainside home will soon come your way. The "Doctors", your Board, need to diagnose for a healthier CMA, your million dollar investment. Don't lay it aside...fill it out and return it immediately! Jerry's grateful sigh will echo a soft "thank you".

TREASURER'S NOTE

The Treasurer, Jim Lancaster, tells us that $4700 in uncollected assessments is still outstanding and that on an annual basis we have lost considerable interest (a minimum of $700) on those delinquent assessments. After nine months had slipped away, he was directed by the Board, for the first time in the history of CMA, to place liens against the property of those who procrastinate indefinitely. In an effort to assure fairness to all CMA members, the Board beginning FY 1982 (October 1, 1981) must adhere closely to covenants which in part states, "the assessments shall bear interest from date of delinquency at the rate of 6% per annum, and the Association may bring an action at law..." Assessment notices for the coming fiscal year will be mailed at least 30 days prior to October 1, 1981.

YOUR FRIENDLY SITE MANAGER AT LOT F-2

As most of the membership is aware, the Board hired Dick Minnamon as CMA Site Manager in September 1980. Some of his early duties involved on-going maintenance needs of the Mountainside, ie. contracting for road repairs, mowing, snow removal and diseased tree removal. Our Manager is now involved in the work of nearly every CMA Committee Task Force. He was involved in negotiating the Barn lease agreement with CRI and is currently in the negotiations relating to future expansion of CMA and working to assess the existing water and sewer systems. He has even been known to break up a loud party or two at the witching hours, in an effort to keep the Mountainside quietude. During the Spring torrential rains, he found an old time resident, Harold Axtell, at day break, knee deep in water with his 7-foot Amish pitch fork clearing out leaves from ditches and culverts in an effort to protect erroding roads. Dick has seen Ivan Asay clearing brush from the Blue Trail to beautify the Mountainside and help hikers find their way. If at any time, you wish to offer your help, give a suggestion or ask questions - take the time to phone Dick at his home. (304) 258-4280

WATER, WATER, EVERYWHERE...

Remember those weekends, when your faucet grudgingly trickled water into your basin... then quit!? NEVER AGAIN!! Hopefully, water will continue to flow freely, thanks to Sam Ashelman who put the new Salmon Well into operation December 1980. It is a good producing well, and so far our water problems have been minimal. Sam has drilled another well in the northeast end of the development. This well is not hooked into the system yet, but when it is we hope it will reduce the iron problems currently coming from the old deep well.

COMMON LANDS - HOW SHALL WE USE THEM?

With a set of maps procured indicating the boundaries of the Common Land, a new outline of Guide Lines for the Use of the Common Land drawn up by Conrad Reining, and the task of renovating the Barn behind them, the Committee, under the dedicated hand of Elizabeth Asay, is ready to tackle other areas: forest protection and care, trails

(Continued on Page 4)

including wild flora marking and protection, the Memorial Grove and the mail box area, the Nursery - a long range plan. She says that creative minds and able bodies are badly needed. Will you give an hour or two of a precious weekend and respond to the challenge? At the November General Meeting WE WILL BE CONSIDERING A MOTION TO CHANGE THE BY-LAWS and separate the CLC from the DACC, to make it a permanent standing committee of the Board. More information will be forthcoming.

INCOME PRODUCING VENTURES. SHALL WE OR SHALL WE NOT?

In order to defray costs such as road maintenance, snow removal, etc., what would you think about CMA engaging in income-producing activities? If CMA can manage to create income by various means, it is hopeful that the annual assessment can be at least held at the same level or possibly reduced. For instance, we are already leasing the Barn. Another idea is raising Christmas trees on our pasture lands. Preliminary research by Jerry Sophar has been made as to its feasibility. The rental program is presently handled through CRI. Home owners could choose to have CMA manage the program, keeping their same profit structure for themselves, and having any remaining profits go to the Association. If you have new ideas or modifications of those suggested, come to the September 5 informational meeting.

SEPTEMBER 5 CMA INFORMATIONAL MEETING

The schedule for the meeting follows:

9:30 - 11:00	Brunch at Coolfont (half-price says Martha Ashelman - $2.85!)
11:00 - 12:30	Introduction and small group discussions
12:30 - 1:00	Break - Drinks and snacks (50¢ CMA budget needs help!)
1:00 - 1:30 or ?	Recap of discussions

During the small group discussions, we will be giving information to you, but more importantly, we will be asking you for your guidance and wishes regarding topics such as: use of the tennis courts and trails, extent or limitations of the rental program, extent or limitations of CMA expansion, status of the new lake and/or existing easement to Lake Sirl, whether CMA should subsidize these programs or begin to move toward becoming self-supporting, etc. Please come ready to participate with your Board.

In order for us to plan food and child-care, please complete this form, tear at the dotted line and send to Elizabeth Asay
Route 1
Berkeley Springs, WV 25411

I will be attending the September 5 Informational Meeting:

_____
Name Phone Number

_____ persons will be attending

_____ children will need child-care